



Media Statement by the National Commission on Women regarding Protection and Access to Justice of the Child in Alleged Sexual Abuse Case

The National Commission on Women established under the Women Empowerment Act No. 37 of 2024, submits the following statement regarding recent reports of alleged sexual abuse of a girl child.

The Commission emphasizes that the rights of the child must be protected at all times, ensuring their access to justice and an independent, impartial investigation, and the prevention of re-victimization and victim-blaming.

The Commission supports and commends the action taken thus far by National Child Protection Authority (NCPA) in ensuring the safety and protection of the child survivor.

While noting that the Sri Lanka Police and the National Child Protection Authority (NCPA) are playing a critical role in this case, we reiterate that it is essential the child has access to independent legal representation specifically mandated to safeguard her individual rights and interests during the legal process. This will ensure that the child survivor receives adequate legal protection and representation, particularly where no parent or guardian is able to act in the best interest of the child.

The Commission emphasizes that every child who is a survivor of abuse is entitled to dignity, protection, equality before the law, and access to justice. These protections are guaranteed under Article 12(1) of the Constitution of Sri Lanka, the country's child protection laws, and the UN Convention on the Rights of the Child, which Sri Lanka has ratified and is hence obligated to adhere to. Under Article 27(13) of the Constitution, the State has a specific duty to safeguard the interests of children and exercise special care to protect them from exploitation and discrimination.

The Commission also wishes to note that Article 24 of the International Covenant on Civil and Political Rights (ICCPR) imposes a binding obligation upon Sri Lanka and its institutions to provide such measures of protection to a child as required by her status as a minor, without being subject to any discrimination. Importantly, in this regard, the ICCPR Act of 2007 provides that every child has a right to legal assistance provided by the State in criminal proceedings affecting the child (Section 5), and that in all matters concerning children, undertaken by public or private social welfare institutions, courts, administrative or legislative bodies, the best interest of the child shall be of paramount importance.

Accordingly, the National Commission on Women calls upon:

- The National Child Protection Authority (NCPA) to ensure that the child continues to receive legal and psychosocial protection, while also ensuring that the child is not subjected to re-traumatization, intimidation, victim blaming and public exposure.
- The Sri Lanka Police to ensure that all investigations connected to this matter are conducted in an objective manner free from any influence or interference. Every measure needs to be taken to ensure that the child survivor is not re-traumatized due to the investigation process or criminal justice procedure. It is also important to ensure that the basic rights applicable to victims are guaranteed, as per the Assistance to and Protection of Victims of Crime and Witnesses Act No. 10 of 2023. These rights include being treated in a manner that safeguards and protects the child's best interests; adopting special measures to provide evidence or statements through audio-visual means; ensuring qualified personnel and appropriate procedures are available to effectively protect and address the special needs of child survivors; and the right to be medically examined by female medical professionals, in situations where the survivor of a crime is a female. We stress the importance of assigning female officers to be part of the investigation and inquiry process to the maximum extent possible.
- The Attorney General's Department, given the sensitive nature of the case, to do its utmost to oversee and monitor the investigation process, to safeguard the rights, interests, safety and wellbeing of the child through all proceedings.
- All media institutions and the general public, including public figures, to refrain from any disclosure that may compromise the privacy, dignity, future and wellbeing of the child. .

This case is not only about accountability for alleged sexual violence against a child, but also brings into focus how Sri Lanka's criminal justice system treats vulnerable children and its ability to uphold the principles of fairness, equality, and justice.

The National Commission on Women will continue to observe developments relating to this case within the scope of its mandate to promote and protect the rights of women and girls in Sri Lanka.

In discharging its mandate, the Commission will work closely with relevant state institutions, civil society organizations, and communities to ensure that women and girls are able to live with safety, dignity, and equal protection under the law. The Commission is committed to advocating for accountability, child protection, and a criminal justice system that is sensitive to the needs of victims and survivors.